

8	Richardson vs. Steward 30-2023-01346448	Motion to Deem Facts Admitted filed by John Steward on 10/30/24 Off Calendar
9	Taylor vs. FPI Property Management 30-2024-01423495	1. Demurrer to Complaint 2. Motion to Strike filed by Ray Pesos, Jorge Nunez, FPI Property Management on 11/25/2024 3. Case Management Conference Defendants FPI Management, Inc., Jorge Nunez, and Ray Pesos filed two motions attacking the allegations in the original complaint: (1) a motion to strike punitive damages; and (2) a demurrer to the first cause of action for premise liability and third cause of action for negligent hiring, retention, and supervision as alleged against Defendant Jorge Nunez only. <i>Motion to Strike</i> First, Plaintiff's opposition to the motion to strike states that the arguments in the motion to strike are well-taken. Plaintiff requests leave to amend to cure the deficiencies discussed in the motion to strike. The Motion to Strike is GRANTED with 20 days leave to amend. <i>Demurrer</i> Second, Defendants' demurrer attacks the allegations against Defendant Jorge Nunez as to the first cause of action for premise liability and third cause of action for negligent hiring, retention, and supervision. Defendant demurs to the first cause of action for premise liability on the grounds that it is duplicative of the second cause of action for negligence. The Court agrees with Plaintiff "elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." <i>Gonzalez v. Interstate Cleaning Corp.</i>, 106 Cal. App. 5th 1026, 1034 (2024), <i>as modified</i> (Nov. 21, 2024).

Duplicative causes of action are “a basis for sustaining a demurrer” and a judge may properly sustain a demurrer without leave to amend as to a cause of action that contains allegations of other causes of action and, therefore, does not add anything to the complaint by way of fact, theory, or recovery. *Palm Springs Villas II Homeowners Assn., Inc. v. Parth*, 248 Cal. App. 4th 268, 290 (2016), as modified on denial of reh’g (July 14, 2016) (holding that cause of action for breach of governing documents was duplicative of cause of action for breach of fiduciary duty).

Another case has held, however, that a demurrer need not be sustained on the grounds that one or more causes of action are redundant, *i.e.*, that a particular cause of action mirrors another cause of action and is duplicative. *Blickman Turkus, LP v MF Downtown Sunnyvale, LLC*, 162 Cal. App. 4th 858, 889–890 (2008). The court in *Blickman* further stated that the elimination of redundancy “is the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment.” *Id.*

For this reason, the demurrer is **OVERRULED** as to the first cause of action for premise liability.

Defendant demurs to the third cause of action for negligent hiring, retention, and supervision on the grounds that the Complaint does not allege that Defendant Nunez was an employer or that he held position where he was responsible for hiring, retention, and supervision such that he can be held liable pursuant to a negligent hiring, retention, and supervision cause of action.

“California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee.” *Doe v. Capital Cities*, 50 Cal. App. 4th 1038, 1054 (1996). “Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.” *Id.* Here, Plaintiff has not alleged that Defendant Nunez is an

		employer or supervisor such that he was responsible for hiring, supervising, or retaining an unfit employee. The demurrer is SUSTAINED with 20 days leave to amend as to the third cause of action for negligent hiring, retention, and supervision as alleged against Defendant Nunez. At the hearing on these motions and the concurrently scheduled Case Management Conference, the parties shall be prepared to discuss whether Plaintiff's Motion for Leave to Amend should be vacated as moot. This Motion for Leave to Amend is scheduled for a 8/4/2025 hearing. Moving Defendants to give notice.
10	Thomas vs. Regional Center of Orange County 30-2023-01333739	1. Motion to Dismiss filed by Larry Landauer, Lilianna Castillo, Regional Center of Orange County, Arturo Cazares on 10/22/2024 2. Case Management Conference Defendants Regional Center of Orange County, Larry Landauer, Arturo Cazares, and Liliana Castillo filed a Motion to Dismiss asking the Court to dismiss Plaintiff's case against Defendant Regional Center of Orange County and enter judgment in favor of Defendant Regional Center of Orange County and against Plaintiff Joy Thomas. Plaintiff did not oppose the motion. Defendants move pursuant to Code of Civil Procedure section 581(f)(2). Section 581(f)(2) states that the "court may dismiss the complaint as to that defendant when . . . [e]xcept where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal." "The decision to dismiss an action under section 581, subdivision (f)(2) rests in the sound discretion of the trial court and a reviewing court will not disturb the ruling